

(at least on demurrer).

Issue preclusion applies (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party. (*State Comp. Ins. Fund, supra*, 50 Cal.App.5th 422, 447-448.) Here, the elements are not satisfied. The issue here is damage to the personal property of Duran, who did not assert any claims in the first suit. Accordingly, the issue is not identical to any issue that could have been present in the first suit. As to the third element, no issues in that case were “actually litigated” given the dismissal relatively early in the proceedings. The issue must have been actually litigated and determined in the first action, a standard not satisfied by a dismissal with prejudice. (*Tukes v. Richard* (2022) 81 Cal.App.5th 1, 22.) Accordingly, issue preclusion also does not apply.

With respect to comparative indemnity, Kammeier correctly points out that a loss is necessary for the cause of action to accrue (e.g., payment of either a judgment or settlement). Still, the effect of this rule is that the statute of limitations does not begin to run until the time of loss. (Code Civ. Proc., § 312 [civil actions can only be commenced after cause of action accrues]; see also *Valley Circle Estates v. Vtn Consol.* (1983) 33 Cal.3d 604, 612 [indemnity cause of action does not accrue until he has suffered actual loss].) This undermines the demurrer’s statute of limitations argument.

Arguably, the point also suggests the cross-action is premature here. However, courts generally allow cross-complaints to be filed within the plaintiff’s primary case where the cross-complaints seek declaratory relief concerning indemnity for any judgment that *may* be rendered on plaintiff’s complaint. (*Shepard & Morgan v. Lee & Daniel, Inc.* (1982) 31 Cal.3d 256, 261 [“Overburdened courts gain nothing from a rule which would discourage the filing of cross-actions in favor of independent actions” and this process represents a more orderly and expeditious resolution of the controversy in multiple party cases].) This is true even where plaintiff may be barred from suit by the statute of limitations. (*Valley Circle Estates, supra*, 33 Cal.3d at 611.)

As to Kammeier’s demurrer pursuant to Code of Civil Procedure, § 430.10 (e) and (g) (respectively pertaining to uncertainty and inability to determine whether a contract is written, oral, or implied), these grounds are essentially unsupported by any argument. The Court construes this as an admission on Kammeier’s part that these are not grounds on which the Court can sustain the demurrer. (See Rule of Court 3.1113(a) [court may treat the absence of a memorandum as a waiver of all grounds not supported].)

In any event, uncertainty is a disfavored ground for sustaining a demurrer, and a demurrer for uncertainty will be sustained only when the pleading is such that the responding party cannot even discern what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.) A complaint or cross-complaint must simply contain a statement of the facts constituting the cause of action, in ordinary and concise language. (Code Civ. Proc., § 425.10 (a).) Here, the cross-complaint meets that low bar. The Court expects that any lingering issues can be illuminated through discovery. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616 [“demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures”].)

14. 9:00 AM CASE NUMBER: C25-02482
CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA

***HEARING ON MOTION IN RE: DISQUALIFY COUNSEL**

FILED BY: JIMENEZ, DANIEL

TENTATIVE RULING:

On November 12, 2025, defendant Robert Jacobsen (“Defendant Jacobsen”) filed a motion order disqualifying Geoffrey Wm. Steele (“Mr. Steele”) and the Steele Law Group, Inc. (collectively, “Plaintiffs’ Counsel”) from serving as counsel for plaintiffs herein (the “Motion to Disqualify Counsel”). The Motion to Disqualify Counsel was set for hearing on June 8, 2026.

Background

Defendant Jacobsen contends that Mr. Steele received confidential information material to this dispute and his continued representation of plaintiffs creates an impermissible conflict of interest.

Defendant Jacobsen asserts that Mr. Steele represented him in a federal case involving the Tice Valley Property that is the subject of this litigation and received information “about Mr. Jacobsen’s position, financial background, and litigation objectives concerning the Tice Valley Property and related trust disputes.” See Motion to Disqualify Counsel, p. 4 *et seq.*

Defendant Jacobsen filed a Request for Judicial Notice regarding certain portions of the California Rules of Professional Conduct (the “RJN”). The RJN is GRANTED.

Analysis

A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice. *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469. Disqualification, however, is “a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a ‘substantial continuing effect on future judicial proceedings.’” *Id.* at 462 quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.

Ultimately, disqualification motions involve a conflict between the clients’ right to counsel of their choice and the need to maintain ethical standards of professional responsibility. *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145. “The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one’s choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” *Id.*

On June 1, 2026, a “Minute Order of April 1, 2026 Denying Motion to Disqualify Attorney Geoffrey Steele & Findings of Fact” was filed herein. The paper attaches a minute reflecting proceedings in Case No. MSD20-03656 before Judge Lee (Department 25).

The Minute Order makes reference to an apparent denial of “Respondent's Motion for Disqualification of Counsel for Attorney Paula Grohs and Attorney Geoffrey Steele.”

However, no opposition papers have been filed articulating the particulars regarding the relationship, if any, of this matter to MSD20-03656 and why or how any determination of the disqualification in such matter is determinative of the pending motion in this case.

Disposition

The Court further finds and orders as follows:

1. The **PARTIES ARE ORDERED TO APPEAR.**

15. 9:00 AM CASE NUMBER: C25-02543
CASE NAME: DWAYNE ROBINSON VS. ALVARO PANAMENO
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: ROBINSON, DWAYNE CAMERON
TENTATIVE RULING:

Jose Alfonso Ramirez-Gomez and Jacoby & Meyers Attorneys LLP (“Counsel”) filed a motion to be relieved as counsel on January 23, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on June 8, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Dwayne Cameron Robinson (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a “breakdown and conflict in the attorney-client relationship, making it unreasonably difficult to carry out effective representation of Plaintiff.” See Declaration filed January 23, 2026, Attachment, ¶2 *et seq.*

No opposition or other response has been filed by Plaintiff. Counsel describes discussions with Plaintiff wherein Plaintiff consented to the withdrawal, but Plaintiff did not cooperate in signing paperwork to dismiss the case or substitute another attorney into it. *Id.* at ¶4-11.

Plaintiff has been given notice of the Motion to be Relieved as Counsel.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court will issue the proposed order after hearing submitted with the moving papers.

16. 9:00 AM CASE NUMBER: C25-03271
CASE NAME: LESLIE GARDETTE VS. DAVID JOHNSON
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: JOHNSON, DAVID
TENTATIVE RULING:

Introduction

Defendants Diamond Ridge Post Acute, LLC d/b/a Diamond Ridge Healthcare Center; David Johnson; and Frank Johnson’s (collectively, “Defendants”) file a Motion to Compel Arbitration and to Stay Civil Action for an order compelling Plaintiff Leslie Gardette, individually and as heir and successor-in-interest to Donna Gardette, deceased (“Plaintiff”), to arbitrate all claims asserted in this action pursuant to the binding Arbitration Agreement executed in connection with Donna Gardette’s admission to Diamond Ridge Healthcare Center. Defendants further request that this action be stayed